
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 16-0068
Mental Health Counselor License of	)	
	)	SETTLEMENT AGREEMENT
MARK GARLICK	)	AND FINAL ORDER
License No. 001046	)	
Respondent.	)	

Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4) (2015), and 645 IAC chapter 12, the Iowa Board of Behavioral Science ("Board") and Mark Garlick ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on November 10, 2016.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
5. Respondent acknowledges that he has the right to be represented by counsel on this matter.
6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
9. This Order shall not be binding as to any new complaints received by the Board.

10. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

11. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

13. Respondent's license is **INDEFINITELY SUSPENDED** effective June 17, 2017. Between May 17, 2017, and June 16, 2017, Respondent shall work only to transition clients to new providers. Respondent may not request reinstatement for at least one (1) year from the date his license is suspended. Prior to seeking reinstatement, Respondent must undergo a comprehensive mental health and boundaries evaluation with a Board-approved evaluator. Respondent shall seek approval from the Board of the evaluator prior to undergoing the evaluation and shall contact the Board to have the investigative file sent to the evaluator prior to the evaluation. The evaluation must address Respondent's ability to safely practice as a licensed mental health counselor. Respondent may request reinstatement after one (1) year of license suspension by filing an application for reinstatement under 645 IAC 11.31 and 31.17. Respondent's license shall not be reinstated except upon a showing by Respondent that the basis for suspension of his license no longer exists, and that it is in the public interest for the license to be reinstated. Respondent understands a request for reinstatement may be set for hearing in front of the Board and that the Board may impose conditions upon his license if reinstatement is granted.

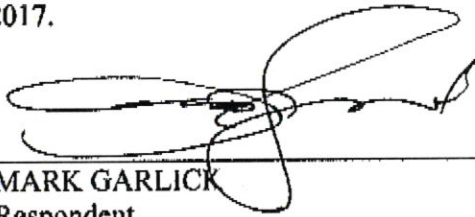
14. Respondent agrees not to use any words or titles which imply or represent that he is a licensed mental health counselor, or to otherwise hold himself out to the public as a licensed mental health counselor, or to engage in the practice of mental health counseling for which a license is required in the State of Iowa while his license is suspended.

15. Respondent shall return his mental health counselor license to the Board on June 17, 2017.

16. Respondent agrees to pay a **CIVIL PENALTY** in the amount of one-thousand dollars (\$1000). This civil penalty shall be made payable to the Treasurer of Iowa and paid prior to filing an application for reinstatement. All civil penalty payments shall be deposited into the State of Iowa general fund.

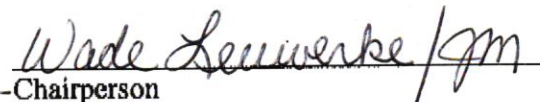
17. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC chapters 13 and 33.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 17 day of May, 2017.



MARK GARLICK
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Behavioral Science on the 17th day of May, 2017.

Vice 

Chairperson
Iowa Board of Behavioral Science

Copies to:

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